

1	American Express National Bank vs. Craft Beer N' Pizza Inc 2025-01509564	Motion for Summary Judgment and/or Adjudication <i>Case dismissed 9/22/26.</i>
2	Farago vs. Hoag Memorial Hospital 2026-01540129	Motion for Preference Plaintiff Shirley Farago’s motion for trial preference is GRANTED. Trial is set for January 11, 2026 at 8:30 a.m. in this department. The court finds good cause to hear Defendant Hoag Memorial Hospital Presbyterian's Motion for Summary Judgment presently on calendar for 12/31/26, later than 30 days before the trial date. Under Code of Civil Procedure section 36, subdivision (a), a party to a civil action who is over 70 years of age may petition the court for a preference, which the court shall grant if the court makes both of the following findings: (1) the party has a substantial interest in the action as a whole, and (2) the health of the party is such that a preference is necessary to prevent prejudicing the party's interest in the litigation. Responding-party does not dispute that plaintiff is over the age of seventy years old and has a substantial interest in this litigation. (Opposition of Defendant Thomas Velling, M.D., p. 1, Ins. 3-4 [ROA 36].) Responding-party contends plaintiff failed to show that her current health is of such an ill state that trial preference is necessary to prevent prejudicing her interest in the litigation. The standard under section 36, subdivision (a) does not require a showing of imminent death or complete incapacity. In <i>Fox v. Superior Court</i> (2018) 21 Cal.App.5th 529, the court explicitly rejected the argument that a plaintiff must demonstrate “death or incapacity might deprive [her] of the opportunity to have [her] case effectively tried.” The court emphasized that section 36 requires only a showing that the party’s health is such that a preference is necessary to prevent prejudicing her interest in the litigation — a more open-ended standard than the “substantial medical doubt of survival beyond six months” required under subdivision (d). The court held that the proposed reading requiring a showing of likely unavailability for trial sets the prejudice standard too high. (<i>Id.</i>) Plaintiff’s evidence presents a compelling case under this standard. Plaintiff’s marked and continuing physical decline — including near-constant pain, severely limited mobility requiring

		a walker, dependence on assistance for daily activities, and advanced osteoporosis causing additional vertebral fractures — demonstrates ongoing deterioration that would be prejudiced by delay. More importantly, her declining memory and inability to recall the timeline of events underlying the case directly threatens her ability to participate meaningfully in the litigation. This cognitive decline goes to the heart of her capacity to assist in her own case and provide testimony about the events at issue. Plaintiff Shirley Farago’s motion for trial preference is GRANTED. The court finds plaintiff has met her burden under Code of Civil Procedure section 36, subdivision (a) and has shown she has a substantial interest in the action as a whole, and that an expedited trial is necessary to prevent prejudicing her interest in the litigation. Plaintiff Farago to give notice.
3	Gutierrez-Perez vs. MemorialCare Medical Foundation 2026-01562591	Demurrer to Complaint Motion to Strike Portions Of Complaint Case Management Conference <i>Hearings continued.</i>
4	Hasso vs. McDougal 2026-01566319	Motion to Set Aside/Vacate Default and Judgment <i>Continued to 12/11/26.</i>
5	K5 Capital Group LLC vs. Alpha Logistics Management Inc. 2025-01513860	Motion to Be Relieved as Counsel of Record (2) <i>Vacated. Notice of settlement filed 9/16/26.</i>
6	Kennedy vs. Barnholtz 2026-01572169	Motion to Dismiss <i>Continued to 12/3/26.</i>
7	Nguyen vs. Neighborhood Gym LLC 2026-01539722	Motion for an Order Setting Hearing Date <i>Continued to 12/10/26.</i>
8	Parodi vs. United Medical Doctors 2026-01553558	Demurrer to Complaint <i>Vacated. Ruling issued 9/21/26.</i>